SANDRA MOYO
versus
BRENDA MBUNGO

HIGH COURT OF ZIMBABWE
MAXWELL J
HARARE 10 March & 22 April and 22 May 2026

Civil Trial- Adultery damages

M T Maja, for the Plaintiff
E Samundombe, for the Defendant

MAXWELL J:

This is an action for adultery damages arising from an alleged adulterous relationship between the defendant and the plaintiff's spouse, Martin Makombe. The plaintiff claims US $15 000.00 for loss of contumelia, representing injury, insult, and indignity, and further claims US $15 000.00 for consortium, representing the loss of companionship, love and affection, comfort, society, and services of her spouse.

In response, the defendant averred that when she met the plaintiff's husband, the two were not living together as husband and wife, and that he had told her he was not married. She avers that she learned of the marriage between the plaintiff and Martin Makombe only when the plaintiff approached the defendant's superiors. She contends that there is no basis for the plaintiff to claim contumelia and consortium damages.

A pre-trial conference was held and the parties agreed to refer the matter to trial on the following issues;

1. Was the defendant aware of the existence of the marriage between the plaintiff and her husband and at what stage did she become aware of the existence of the marriage?
2. Whether or not the defendant committed adultery with the plaintiff's husband? And if so,

3. The quantum of damages thereof
4. Who should pay the costs of suit and at what rate?

Plaintiff's Case

The plaintiff's evidence was as follows. She is legally married to Martin Makombe under the then Marriage Act [*Chapter 5:11*], now the Marriages Act [*Chapter 5:17*]. The marriage still subsists. She married Martin Makombe on 24 August 2019 and tendered the marriage certificate as an exhibit. She indicated that they were living happily together as a family before the defendant came onto the scene. She stated that on 4 June 2021, she was at home when four policemen came to arrest her husband. Before he was taken away by the police, he told her to contact a certain person whose number was saved as Dylan on his phone. He said the person would give her some money and that the person was his friend. She averred that when she tried to send a message to that number, she realised that the person was actually in a sexual relationship with her husband, judging from the nature of the messages she came across. An attempt to produce pictures of those messages as exhibits failed. The plaintiff further stated that she contacted the defendant and they met at Harare Police Station, where she was given US $100.00 by the defendant. She introduced herself to the defendant as the wife of Martin Makombe.

She stated that the defendant later called to console her and assured her that her husband would be released by the police. She further indicated that the text messages showed the defendant was aware of the marriage when they met at the police station. She stated that the defendant's name appeared in the text messages, and she checked the Ecocash platform to confirm it. The plaintiff also stated that she then confronted her husband, Martin Makombe, about the affair, and he admitted to being in an affair with the defendant. He apologised and promised to terminate the relationship with the defendant. She averred that between June and July 2021, everything was going well in her marriage.

The plaintiff stated that on 9 August 2021, her mother was not feeling well as she had been diagnosed with a serious illness. Martin Makombe advised the plaintiff that he would take her to her mother's place in Marlborough for two days so she could check on her, as it was a holiday. She agreed to go and see her mother; she indicated that, at the back of her mind, she knew something was up because of the way her husband was behaving. She then proceeded to Marlborough. She averred that her husband was not picking up his phone when she tried calling him the night before, so she suspected that he was up to something. On 10

August 2021, she woke up early in the morning and left for the matrimonial home in Juru and she did not inform her husband that she was coming.

The plaintiff further indicated that when she got home around 7 am, she met one of their helpers who cleans the dog's kennel who told her that he had been to their place, but her husband was not opening the gate. They went together to the matrimonial home. When they arrived, the boy who was in front knocked on the door and the plaintiff's husband opened the door. When the plaintiff's husband opened the door, he thought he was opening it for the boy, not knowing that the plaintiff was behind the boy. The plaintiff testified that when her husband saw her, he started sweating and shivering and she went into the house, where she saw the defendant sitting in their lounge wrapped in her blanket. She asked the defendant what she was doing in her house and what she was doing with her blanket, to which she replied that there was nothing special about her stupid blanket, which cost only US $20.00. She was enraged and she hit the defendant. Her husband dragged her out of the lounge. Her husband gave the defendant her car keys and asked her to leave. She left.

The plaintiff was asked to comment on the defendant's assertion that nothing in the matrimonial home symbolised a matrimonial home and that the house symbolised that of a bachelor, she disagreed. She indicated that everything belonging to her was in that house and the defendant and her husband were actually using her stove to cook. She stated that the defendant was wrapping herself with her blanket, sitting in her lounge on her couches, eating from her plates and the stove that they were using to cook was actually a gift that she and her husband received on their wedding day. She averred that the text messages that the defendant and her husband were sending each other confirm that the defendant actually knew that Martin Makombe was married and also, they met at Harare Central Police Station and the defendant referred to her as Martin Makombe's wife.

The plaintiff also stated that she reported the defendant to her superiors after she caught her with her husband in her matrimonial home. She disputed the allegation that from June 2021 to August 2021, she had never visited Juru. She indicated that her husband drove her to her mother's residence on 9 August and she was coming from the matrimonial home. During cross-examination, when questioned regarding the admissibility of the text messages, the plaintiff maintained that the objection raised by the defendant's counsel did not extinguish her claim. She asserted that she had already tendered oral testimony before the court, which constitutes admissible evidence in its own right.

The plaintiff emphasised that her sworn oral evidence, having been subjected to cross-examination, remains valid and capable of substantiating her case notwithstanding the exclusion of the text messages. She stood by her testimony as sufficient to discharge the burden of proof on the balance of probabilities. Under cross-examination, it was put across that the plaintiff was two months pregnant, showing that she was enjoying conjugal rights. She indicated that the conjugal rights ceased owing to the affair.

Defendant's Case

The defendant confirmed that she was aware of the contents of her plea as well as the summary of evidence. However, she indicated that she had some variations to make in respect of her pleadings. She testified that she met Martin Makombe, who was living in Murewa, where she was employed as a police officer. Martin Makombe proposed love to her, she agreed and the relationship lasted for about five months from April 2021 to September 2021. She averred that she would go and sleep at the plaintiff's husband's house as she was advised that they had separated and the plaintiff had left the matrimonial home after the separation. The defendant stated that, during the subsistence of the relationship, the plaintiff's husband was arrested. In consequence thereof, the plaintiff engaged in communication with the defendant regarding the funds required to secure the release of her husband. It was at this juncture that the plaintiff introduced herself to the defendant as the lawful wife of Martin Makombe.

The defendant told the court about her confrontation with the plaintiff when she was found in the matrimonial home. She averred that she went there early in the morning after a night shift. She commented on the state of the house. She indicated that in the bedroom, there was one double bed and only Martin Makombe's clothes in the fitted wardrobe. In the lounge, there was a double couch and a television set. The defendant further stated that Martin Makombe would tell her that he had separated from the plaintiff. She indicated that Martin's mother, brother, and sister-in-law attested that he had separated from his wife. She was asked about the contents of her last paragraph of the plea about going to Marlborough. She indicated that when they got there, the plaintiff actually came out but did not greet her or confront her.

The defendant denied that she was the reason for the collapse of the plaintiff's marriage. She claimed that they were already separated when she met Martin. When she was asked to comment on the claim of US $30 000, she questioned whether the plaintiff had been

distressed to the point of obtaining a psychological report to assess what she did to her and whether or not she received any counselling. She indicated that she does not have any obligation to pay anything to the plaintiff.

Under cross-examination, the defendant stated that the relationship had started in April 2021 and had lasted for about five months up to September 2021. When the defendant was asked why there were two different versions of when she became aware of the marriage relationship, she shifted the blame to her legal practitioner's office for making a mistake. She was further asked what she wanted the court to conclude about the discrepancies and she replied that it was up to the court to make its own conclusion.

ANALYSIS

In Zimbabwe, the delict of adultery remains relevant, and courts are empowered to award damages for contumelia and loss of consortium where a plaintiff establishes that a defendant knowingly intruded upon a subsisting marriage.

In *Annamaria Dlamini (Nee Dube Aka Dladla)* v *Aquilina Pamberi - Mandeya* HH315/19 Justice Chitakunye highlighted that the Zimbabwean community still considers adultery as deserving of punishment to the paramour. He reiterated that;

> "It is clear to me that the marriage institution in Zimbabwe is still held in sacrosanct and the need to provide some measure of protection is still considered necessary despite the high level of infidelity by those in such marriages; this being done for the sake of the innocent spouse for the loss of *consortium* and *contumelia*. If such protection is removed, the innocent party would otherwise be tempted to take the law into his or her own hands, as there would be no legal recourse to atone for the said loss of *consortium* and *contumelia*."

Was the defendant aware of the existence of the marriage between the plaintiff and her husband and at what stage did she become aware of the existence of the marriage?

It is trite that knowledge of the marriage is the central element in an adultery damage claim. The plaintiff produced a marriage certificate showing that she is legally married to Martin Makombe under the Marriages Act [*Chapter 5:17*]. The marriage subsists, and there is no evidence of divorce between the plaintiff and Martin Makombe. The above establishes the plaintiff's standing to sue for adultery damages. A critical issue is whether the defendant reasonably knew that Martin Makombe was married. The plaintiff's evidence was that she met the defendant at Harare Police Station and she introduced herself as Martin Makombe's wife. She further testified that the defendant later communicated with her, consoling her

about her husband's arrest. She testified that she found the defendant in her matrimonial home using her household property.

On the other hand, the defendant alleges that Martin and his relatives told her that he was separated. She claims that she only learned of the marriage when the plaintiff confronted her. The contradictions in the defendant's testimony about when she learned of the marriage between the plaintiff and Martin Makombe weaken her credibility. The defendant in her evidence sought to depart from what is contained in her summary of evidence and plea regarding when she became aware of the existence of the marriage. She stated that she only got to know of the marriage when the plaintiff produced a marriage certificate, when she was arrested in August 2021 for assault. The defendant in her plea and summary of evidence, took a position regarding when she became aware of the plaintiff's marriage. During her oral testimony she attempted to introduce a different version regarding her knowledge of the marriage. Parties are bound by their pleadings. The change in version suggests fabrication.

Whether or not the defendant committed adultery with the plaintiff's husband?

In the case of *Elizabeth Masvimbo (Nee Mutema) v Natasha Masvimbo (Nee Marufu*), HH237-26 Justice Tsanga articulated that;

> "The issue is whether sex outside marriage occurred between the defendant and the plaintiff's husband. The onus rests on the plaintiff to prove, on a balance of probabilities, that the defendant committed adultery with her husband and that such adultery resulted in the loss of consortium and contumelia complained of. It is trite that adultery is rarely proved by direct evidence. The court is entitled to draw inferences from conduct, surrounding circumstances, cohabitation and public representation, provided that the inference of an adulterous relationship is the most probable inference to be drawn from the facts. In assessing the evidence before it, the court must determine the credibility of the witnesses and the inherent probabilities of the competing versions."

In light of the above sentiments, the plaintiff testified that she discovered text messages between her husband and the defendant. Later on, she physically found the defendant with her husband in her matrimonial home. The defendant admitted to a five-month sexual relationship with Martin Makombe, adultery is proved on a balance of probabilities. The plaintiff corroborated this by her testimony and discovery of the defendant in her matrimonial home. She stated that when she found the defendant in her matrimonial home, she went to the bedroom where she discovered that the state of the bedroom showed that the defendant and her husband had sexual intercourse on the bed. The plaintiff's evidence shows that she had not witnessed a sexual act between the defendant and her

husband. No direct evidence of sexual intercourse was presented, but circumstantial evidence, presence in the matrimonial home early morning and Martin Makombe's admission is sufficient to infer adultery. The plaintiff managed to establish liability for adultery damages

The quantum of damages

In the case of *Nyakudya v Washaya* 2000 (1) ZLR 653, the court summarised the factors to be considered in determining the amount of damages to be awarded against a third party for adultery as follows;

> " (a) the character of the woman (or man) involved,
>
> (b) the social and economic status of the plaintiff (and the defendant)
>
> (c) whether the defendant has shown contrition and has apologised
>
> (d) the need for deterrent measures against the adulterer to protect the innocent spouse against contracting HIV from the errant spouse; and
>
> (e) the level of awards in similar cases.
>
> In addition to the above, the court should also take into account whether the plaintiff has suffered lack of consortium as well as contumelia, or just the latter."

In this case, the defendant is a police officer. She continued with the relationship with the plaintiff's husband despite knowledge of the marriage. The defendant has not shown contrition and she has not even apologised. The defendant indicated that the plaintiff does not deserve to be awarded damages. It is of paramount importance to take into consideration the need for deterrent measures against the defendant to protect the plaintiff against contracting HIV from her husband.

The plaintiff claims US$15 000.00 for contumelia. The defendant made a remark about the plaintiff's blanket, "nothing special about your stupid blanket". The defendant was present in the plaintiff's matrimonial home, wrapped in the plaintiff's blanket, cooking on her wedding stove, and eating from her plates. These actions can reasonably be construed as insulting and injurious to the plaintiff's dignity. The plaintiff further claimed US $15 000.00 for consortium. The plaintiff testified that conjugal rights ceased due to the affair. She was pregnant at that time, showing that marital intimacy had existed, but it was disrupted. The plaintiff described the breakdown of companionship and affection after discovering the affair.

The defendant, on the other hand, denies responsibility, claiming that the marriage had already collapsed. However, the plaintiff's testimony and her husband's admission of the affair suggested otherwise. The loss of companionship, affection and comfort is established.

In *Khumalo vs Mandishona* 1996 (1) ZLR 446 (H), the court held that;

> "where the defendant shows contrition and tenders an apology to the plaintiff for the injury inflicted, the apology constitutes a balm for the plaintiff's injured soul. The plaintiff's feelings are however, not assuaged by an impertinent seducer who does not show any contrition and forces him to go to court and relive the traumatic experience when giving evidence to prove adultery."

In this case, the plaintiff's feelings were clearly not assuaged by the defendant, who did not show any contrition and forced her to go to court and relive the traumatic experience when giving evidence to prove adultery. This was clear as shown by the demeanour of the plaintiff while giving evidence. The plaintiff has shown injury to dignity and loss of consortium. The defendant's claim of ignorance is undermined by her contradictory testimony and her presence in the matrimonial home of the plaintiff.

In the case of *Katsumbe v Buyanga* 1991 (2) ZLR 256 the court held that;

> "where a third party is shown to have intruded sexually upon a marriage and to have contributed to the breach of the duty of marital fidelity which each spouse owes the other by committing adultery with the one spouse, the courts in the absence of mitigating circumstances, should be seen, in their award of damages, to come down hard on the adulterer or adulteress The courts should ensure, as far as is reasonably possible, that an aggrieved spouse who approaches them is not made to feel, after their award of damages, that the adulterer or adulteress has been the winner and that it would have been better for the aggrieved spouse to have taken the law into his or her own hands."

While the plaintiff claimed US $30 000.00, courts generally moderate awards to reflect proportionality. Excessive claims are not granted for the asking. There must be a justification for the amount claimed. In *Masvimbo* v *Masvimbo* HH 237/26 the Plaintiff had claimed $30 000.00 for contumelia and loss of consortium. Honourable Tsanga J, after referring to *Corah Mahachi* v *Pamela Farai Zimba* HH 315/17 awarded a total of $8000.00 for both contumelia and loss of consortium. Considering the proven indignity and disruption of the marital consortium and considering that the adulterous affair lasted for a relatively short duration, an award of US $3 000.00 for contumelia and US $3 000.00 for consortium is fair and just.

Who should pay the costs of suit and at what rate?

The ordinary rule is that costs follow the outcome. The plaintiff sought costs on the attorney client scale. It is important to note that such a punitive order is not justified in the circumstances. While the defendant's contradictory testimony and lack of contrition compelled the plaintiff to litigate, the matter did not rise to the level of exceptional misconduct warranting attorney-client costs. The plaintiff succeeded in proving adultery and the resulting injury to dignity and consortium, and the defendant's denial and dismissive conduct prolonged the proceedings. The defendant should bear the costs of suit, but only on the ordinary scale, ensuring the plaintiff is indemnified for expenses incurred without imposing the harsher sanction of attorney-client costs.

The following order is appropriate

1. The defendant is found to have engaged in an adulterous relationship with the plaintiff's husband, Martin Makombe.
2. The plaintiff be and is hereby awarded the sum of US$3 000.00 (Three Thousand United States Dollars) for loss of consortium.
3. The plaintiff is further awarded the sum of US$3 000.00 (Three Thousand United States Dollars) for *contumelia*.
4. The defendant be and is hereby ordered to pay the total sum of US$6 000.00 (Six Thousand United States Dollars) to the plaintiff, in respect of the damages described in paragraph 2 and 3 above.
5. Costs of suit are to be borne by the defendant on an ordinary scale.



Kawonde Legal Services, Plaintiff's legal Practitioners
Samundombe and Partners, Defendant's legal Practitioners